

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA

*In the matter of an application for mandates in
the nature of Writs of Certiorari and
Prohibition in terms of Article 140 of the
Constitution of the Democratic Socialist
Republic of Sri Lanka.*

CA (Writ) Application No. 217/2024

K.D. Ebert & Sons Holdings (Private)
Limited, (NPVS-23735)
No. 5/41, Madiwela Road,
Embuldeniya,
Nugegoda.

PETITIONER

Vs.

1. The Bank of Ceylon
BOC Square, No. 01,
Bank of Ceylon Mawatha,
Colombo 01.
2. The Road Development Authority,
“Maganeaguma Mahamedura” ,
No. 216, Denzil Kobbekaduwa Mawatha,
Battaramulla.

RESPONDENTS

Before : **Hon. Rohantha Abeysuriya PC, J.(P/CA)**

: **Hon. K. Priyantha Fernando, J.(CA)**

Counsel : Kuwera de Zoysa PC with Chanaka Jayamaha, AAL
and Samuditha Kumarasinghe, AAL and Randeewari
Arangala AAL for the Petitioner.

Kaushalya Nawaratne, PC with N. Wijesundara, AAL
for the 1st Respondent instructed by Subhani
Nanayakkara, AAL

Nirmalan Wigneshwaran, DSG for the 2nd Respondent.

Written Submissions on : 22.09.2025 for the 2nd Respondent.

29.09.2025 for the Petitioner.

29.10.2025 for the 1st Respondent.

Supported on : 11.09.2025

Decided on : 08.05.2026

K. Priyantha Fernando, J.(CA)

1. The Petitioner has invoked the jurisdiction by Petition dated 1st April 2024 of this court seeking writs of *Certiorari* quashing the impugned demands of the 2nd Respondent (Road Development Authority- RDA) made to the 1st Respondent Bank (Bank of Ceylon - BOC) in reference to the Advance Payment Guarantees and Performance Guarantees;

Prohibition preventing the 2nd Respondent from making any demand on the same and **Prohibition** preventing the 1st Respondent from encashing the same.

FACTUAL BACKGROUND:

2. The Petitioner being a CS2 Grade Contractor had partnered with Ranken Railway Construction Group (Ranken) in 2013 to provide that RANKEN would serve as the technical and Joint venture partner of the Petitioner. This partnership later evolved to one where RANKEN acted as the agent of the Petitioner. The Petitioner then entered into an Exclusive Agreement (A3) dated 8th January 2016 with the same entity for the purpose of participating in the bidding process of the call for open tenders for the “Integrated Road Investment Program (iRoad) North Central, North Western Provinces and Kaluthara District – Rural Roads”. A further supplementary agreement (A4) was entered into on 11th January 2016 which provided that the execution of Performance bonds would be facilitated under the name of RANKEN and that RANKEN would open a current account in the 1st Respondent Bank and the Petitioner will be authorized to operate it independently.
3. Following the acceptance of three of the bids submitted on behalf of the Petitioner by RANKEN, the Petitioner entered into a Project Management agreement dated 20.07.2016 in order to execute the said projects and subsequently contracts in relation to 2 of the bids relevant to the instant case were entered into between RANKEN (as agent of the Petitioner) and the 2nd Respondent. However, the Petitioner submitted that due to inherent defects with the contracts (A7 and A8) the performance of those contractual obligations was rendered impossible and hence the contract was frustrated and hence has no force or avail in law. Despite the Petitioner’s concerns the Respondents and RANKEN continued to carry out the work despite the attempts of the Petitioner to halt such.
4. Following these developments, the 2nd Respondent then terminated the contracts by letters of termination dated 12.02.2019. However, it was the Petitioner’s contention that the 2nd Respondent did not follow the termination procedure as set out in the contracts which resulted in the violation of clauses 15.3, 3.5, 15.4 and 2.5 of the contracts.

5. Furthermore, the Petitioners submitted that the 2nd Respondent then demanded to encash the advance payment guarantees and performance guarantees despite such an action violating clause 4.2 of the contract which relates to the making of claims under the performance security. **It was the Petitioner's contention that since the 2nd Respondent did not follow the contractual procedure of termination, the issue of entitlement to claims remains non-ascertained.** Thus, the conduct of the 2nd Respondent in demanding to encash the guarantees was **unreasonable, an/or irrational and/or an abuse of power** in the eyes of the Petitioner.
6. The Petitioner then filed a case in the Commercial High court bearing case No. CHC/524/2019/MR and it was during that case that the Petitioner was made aware of the 2nd Respondent's demands. In addition to the alleged illegal and/or unlawful conduct of the 2nd Respondent, the Petitioner submitted that even the 1st Respondent Bank repeatedly refused to provide the Petitioner with a copy of the purported demand.
7. An Order was then delivered in the Commercial High Court dated 24.02.2022 (A22) holding that the Plaintiff had failed to establish any fraud, there was no contract between the Plaintiff and the 1st Defendant (2nd Respondent in the instant case) and the 1st Defendant Bank had no knowledge of the principal agent relationship between the Petitioner and the 2nd Respondent.
8. Following the same, the Petitioner preferred an appeal to the Supreme Court on the grounds that the Commercial High Court had not sufficiently taken into account the fact that the 2nd Respondent had not followed the contractual procedure of terminating the contracts. The application too was dismissed on 20.03.2024. It is only after a lapse of five years from the original plaint that the Petitioner has come before this court.

POSITION OF THE 2nd RESPONDENT (RDA) AND PRELIMINARY OBJECTIONS:

9. The first preliminary objection taken up by the 2nd Respondent was that the Petitioner's conduct amounts to an abuse of process through the multiplicity of the proceedings filed. The Respondent argued that issue of estoppel, being a part of Sri Lankan law in

civil proceedings, applies in judicial review as well, and where the technical requirements of estoppel are not met, abuse of process can be used as they are both intertwined.

10. The same was held in **Nadun Chinthaka Wickramaratne v Counter Terrorism and Investigation Division of Sri Lanka Police** CA/WRIT/523/2024 decided on 20.11.2024. The court identified that the main reliefs of both applications in the said case were identical and thus it was held that the second case amounted to an abuse of process. Furthermore, in the case of **Kahawatta Plantation Ltd. V Weerasinghe and Wijewardene** SC/Appeal/182/2016 decided on 29.06.2017, it was held that a focus on the relief prayed is emphasized upon when deciding whether *res judicata* applies in a matter. The Respondent also alleged that the Petitioner has not adduced any further or specific reasons for the invocation of the jurisdiction of this court in particular.
11. The second preliminary objection was that writ shall not lie for the enforcement of contracts. The Respondent relied on the case of **Samaraweera v Minister of Public Administration** (2003) 3 SLR 64 it was held that rules applicable to commercial contracts do not have statutory force. Further, it was held in **Galle Flour Milling (Pvt) Ltd v Board of Investment of Sri Lanka and another** (2002) BLR 10, that although one of the parties was a public authority it was not sufficient to hold that such an action would be amenable to writ jurisdiction from that fact alone.
12. The third preliminary objection is with regard to unexplained delay and/or *laches* of the Petitioner. In the case of **Nigamuni Piyuji Rasanja Mendis v The University of Kelaniya** it was held that “*The Petitioner has recourse to the Court of Appeal only after the Supreme Court in the said FR Application takes a decision unfavourable to the Petitioner...*”. The 2nd Respondent submitted that in the above case the delay was 2 years, whereas in the instant matter the unexplained delay is 5 years.
13. Finally, the 2nd Respondent argued that the necessary parties have not been named in the instant application, namely Ranken Railway Construction Group Co. Ltd. The 2nd Respondent relied on the decision arrived at by a divisional bench of the Court of Appeal **Abayadeera and 162 others v Dr. Stanley Wijesundara and another** (1983) 2 SLR 267, wherein it was held that an absence of such necessary parties would be fatal to the application.

POSITION OF THE PETITIONER:

14. The Petitioner at the outset stated that when the matter was taken up for support on the 11th of September 2025, 3 preliminary objections were raised on behalf of the 2nd Respondent. However, the Petitioner submitted that in the 2nd Respondent's written submissions an additional preliminary objection was raised, and thus the Petitioner has objected to the consideration of the said objection.

ABUSE OF PROCESS?

15. Regarding the first preliminary objection taken up by the Respondent, abuse of process and *res judicata*, the Petitioner submitted that a "cause of action" is materially different to "judicial review". The Petitioner highlighted the fact that the 2nd Respondent has heavily relied on the cases of Nigamuni Piyuji Rasanja Mendis v The University of Kelaniya CA/WRT/90/2021 and Saundra Marakkala Imasha Lahiruni Upeksha and Others v Hasitha Kesara Weththimuni and others CA/WRT/166/2017, where there had been a Fundamental rights application filed before the Supreme Court alongside Writ Application filed before this Court.
16. In support of the contention, the Petitioner relied on the case of T. I. G. Suriyarachchi and others v L. C. Liyanage alias Gunewardena and others CA/2721997(F) wherein the writ prerogative and *res judicata* was discussed.
17. The Petitioner further listed matters of difference between the Commercial High Court case and the instant writ application, highlighting that the primary difference is that the Commercial High Court case deals with the wrongful and/or unlawful termination of the contract by the 2nd Respondent, whereas the Petitioner's grievance in the instant case is regarding the failure of the 2nd Respondent to follow the post termination procedure provided for by the contract. As such the Petitioner contended that the instant matter is on the basis of procedural impropriety.

NECESSARY PARTIES NOT BEFORE COURT?

18. In dealing with the second preliminary objection of the Respondent, being the objection of necessary parties. The Petitioner stated that as per the case of **Gregory Fernando and others v Stanley Perera and others** (2004) 1 SLR 346 wherein it was held that those “*whose rights are adversely affected must be given an opportunity for a fair hearing*”. The Petitioner submitted that although RANKEN is a party to the case in the Commercial High Court, the matter is yet proceeding *ex parte* against them as they have not appeared to date. Moreover, the Petitioner contended that RANKEN is not an aggrieved party, nor has any relief been sought against the agent and hence RANKEN is not a party who is necessary for the effectual adjudication of the instant matter.

LACHES?

19. In dealing with the alleged *laches* of the Petitioner, it was submitted that the 2nd and 1st Respondents have failed to provide the Petitioner with a copy of the purported demand which resulted in the Petitioner having to obtain such by way of a prayer. Thus, the Petitioner was of the view that the Respondent has now been estopped from raising preliminary objection on *laches* due to its own failure to file objections/limited objections to the instant application at the earliest opportunity.
20. Finally, the Petitioner addressed the fourth preliminary objection taken up by the 2nd Respondent. The Respondent submitted that the instant matter is contractual and thus cannot be heard before this court. The Petitioner in response submitted that it is by virtue of the statutory authority of the Respondents as set out in Section 41 of the Bank of Ceylon Ordinance No. 53 of 1938 and Section 9(e) of the Road Development Authority Act No. 73 of 1981 that these contracts have been entered into. The Petitioner relied upon the case of **Timberlake International Pvt Ltd v The Conservator General of Forests** SC/APPEAL/06/2008 decided on 02.03.2010.

ANALYSIS:

IS THERE AN ABUSE OF PROCESS?

21. Regarding the preliminary objection that this application is an abuse of process and is barred on the basis of issue Estoppel, it was contended failure to follow contractual provisions constitute procedural impropriety.
22. The issue of Estoppel and Abuse of Process are intertwined and the decision in **Nigamuni Piyuji Rasanja Mendis v. The University of Kelaniya** CA/WRIT/90/2021, CA Minutes of 02.08.2023 sets out the link between issue estoppel and abuse of process in the following terms:

His Lordship Rajakaruna, J. stated as follows,

“If the technical requirements of issue estoppel or cause of action estoppel are not met, it may be possible to invoke the doctrine of abuse of process to prevent re litigation of matters. Vide- ‘What is settled is Settled: The Doctrine of Res Judicata by Maurice Mirosofin, Pacific Law Group, (accessed 31 July 2023).

I wish to borrow the information illustrated by the author in the said Law Blog in arriving at a conclusion in the instant Application. The said author discussed further the aspects on abuse of process of court stating that; ‘Judges have an inherent and residual discretion to prevent an abuse of the court’s process.

The concept of abuse of process of court including ‘Res Judicata’, ‘Estoppel’, ‘Rule Against Collateral Attack’ and ‘Waiver’ can be identified as vital elements of the umbrella concept known as Functus Officio. In dealing with the concept of Functus Officio, it should be noted that it aims to achieve finality whilst ensuing the conclusion of judicial proceedings.

....Implementing measures to prevent practices like forum shopping and bench hunting is essential for maintaining the rule of law and sustaining public confidence in the judiciary. Furthermore, exploiting the judicial system for ulterior motives threatens the integrity of justice and democracy, weakening public trust and jeopardizing the judiciary's role as a cornerstone of society. The instant application could have been refused solely by adopting the umbrella concept of Functus Officio. However, this Court has taken an additional burden for completeness to consider the element of proprietorial discretion. The judicial process concerning judicial review must be approached with responsibility and should not be misused by filing Review Applications without merit.” (emphasis added)

23. In the instant case, the essence of the Petitioner's claims in the Commercial High Court and Supreme Court on the one hand and before this Court on the other is identical. The Petitioner seeks to prevent the 2nd Respondent RDA from claiming on the identical performance and advance payment bonds and the 1st Respondent Bank from paying on the said bonds.
24. It is important to note that the Petitioner has failed to explain to this Court in its Petition as to the exceptional circumstances that exist for it to invoke the Writ Jurisdiction of this Court notwithstanding the previous cases. The Petitioner has only referred to the previous litigation which has been filed 5 years earlier as a matter of disclosure but proffers no explanation for seeking intervention from this Court.
25. The Petitioner in the Commercial High Court has based its claim, inter alia, on the following:
- (a) Impossibility and frustration of contract at paragraph 26 of the Plaint.
 - (b) Lack of authority by its purported agent Ranken (paragraph 28).
 - (c) Illegality of the termination as well as the failure to complete the termination process by not carrying out joint measurements, and not carrying out a valuation at the time of termination, and not communicating the balance amount to be recovered from the advance payment (paragraphs 34 and 36).

(d) The Respondents in this case as well as Ranken have acted in collusion (paragraph 37).

(e) The guarantees are not unconditional, that the dispute between the parties should be resolved as per the dispute resolution clause and that enforcing or encashing the guarantee prior to payments being made to the Petitioner is unlawful. (paragraph 42).

26. It is apparent that the Petitioner has raised the issues of not carrying out valuations and joint-measurements as well as encashment of the bonds prior to payments being made to the Petitioner before the Commercial High Court. Thus, the statement that the Commercial High Court case was based entirely on fraud is false.

27. The Petitioner has raised substantially the same issues in its leave to appeal application to the Supreme Court by A23 (page 1053-61) In particular, paragraphs 2(e) and 4(d) of the Petition to the Supreme Court are useful.

“2(e) xiv. The purported termination of the contracts [] were not in accordance with the conditions of the said contracts, owing to the fact that the necessary steps to complete the termination process were not taken.

2(e)xviii. The advance payment guarantee supplied by the Petitioner under the contracts (marked P7 and P8 with the Complaint) carried with it a condition precedent to any demand being made on the said guarantee, which conditions were not fulfilled by the 1st Respondent.

4(d) i. The Respondent had failed to follow the procedure set out in the contracts (marked P7 and P8 with the Complaint)

4(d) ii. Any dispute arising out of the contracts (marked P7 and P8 with the Complaint) had to first be referred to adjudication and subsequently arbitration”

28. In view of the above, it is revealed that the Petitioner’s application to this Court is an abuse of process of court.

ISSUE OF ESTOPPEL:

29. I will now examine whether the instant case meet the technical requirements for issue estoppel. In **Saundra Marakkala Imasha Lahiruni Upeksha and others v. Hasitha Kesara Weththamuni and others**, CA/Writ/166/2017, CA minutes of 04.04.2019, His Lordship Janak de Silva J, set out the following criteria that must be satisfied in establishing a plea of issue estoppel:

- i. Finality of the decision on the issue.
- ii. The determination must be fundamental, not collateral
- iii. Identity of parties
- iv. Same capacity
- v. Precisely the same and identical issues or question must have been decided.

30. There is a further requirement that the particular issue should have been determined by a court of competent jurisdiction; **Mills v. Cooper** (1976 2 Q.B. 459 at 468). Items (i) to (iv) above are clearly met and were not disputed.

31. It was contended by the Petitioner that the issues or questions to be answered are different. However, it is seen that the same questions have been raised in the previous case. The Petitioner's argument that allegations about the failure to complete the termination process by not carrying out the joint measurements, not carrying out a valuation or that the necessary steps to complete the termination process were not taken or that the conditions precedent to make the demands were not fulfilled do not fall within the procedural impropriety.

32. Even though the Petitioner claimed that the present case is based solely on procedural impropriety while the previous cases were based on fraud, this application contains numerous allegations of fraud.

- (a) The heading above paragraph 22 of the Petition refers to Frustration and the Fraud committed by the Second Respondent RDA
- (b) Paragraph 43 which specifically alleges fraud due to the Second Respondent failing to follow termination procedure.

(c) Paragraph 46 reiterate the allegation of fraud.

(d) Paragraph 51 (iii) alleges that the First Respondent Bank was aware of the fraud by the 2nd Respondent.

(e) Paragraph 56 (iii), 57, 58(iii) and 58(v) again reiterate fraud.

33. It is unconscionable that the Petitioner could claim this application was not based on fraud despite all of the above allegations in its Petition. It is seen that the other allegations such as frustration, impossibility of performance, Ranken purportedly acting without authority, failure to follow the termination procedure etc. have also been thrown into the present Petition in addition to the allegation of Fraud. Thus, this case deal with the same issues and questions and cannot be re-litigated *ad nauseum*.

34. **Saundra Marakkala Imasha Lahiruni Upeksha and 9 others v. Hasitha Kesara Wettthamuniand 11 others**, CA/WRT/166/2017, CA Minutes 04.04.2019 cited above is on point. In that case, this Court has held that where the Petitioner had invoked the fundamental rights jurisdiction of the Supreme Court and had failed, they were not entitled to proceed with a writ application on the same issues.

“I hold that in the instant matter, the doctrine of issue estoppel applies as the Petitioners in this application are impugning the alleged erroneous application of clauses 6(f) and 6(iii) in P1, whereas at paragraphs 13, 14 and 20 of the petition filed in the Supreme Court the Petitioners have urged same grounds”.

35. In light of the above authorities, it is evident that the Petitioner is estopped from re-litigating the same issues that have already been adjudicated before the Commercial High Court and the Supreme Court. As underscored in **Nadun Chinthaka Wickramaratne v. CTID** - CA/WRIT/523/2024, C.A.M. 02.08.2023, both, issue estoppel and cause of action estoppel bar a party from pursuing matters already decided or which ought properly to have been raised in earlier proceedings.

36. Further as emphasized in **Asaalage Binura Nisal enadheera v. UGC** – CA/WRT/41/2021, C.A.M. 10.06.2021 **Vehicles Lanka (Pvt) Ltd v. Jagath Premalal Wijeweera** – CA/WRT/446/2014, C.A.M. 12.02.2016, there must be

finality to litigation, and parties cannot be permitted to repeatedly agitate the same matters, thereby abusing the process of Court.

37. It would be apposite to reiterate the words of the Indian Supreme Court in **M/S Chetak Construction Ltd vs. Om Prakash & Ors** on 20 April, 1998, AIR 1998,

“We certainly cannot approve of any attempt on the part of any litigant to go ‘forum shopping’. A litigant cannot be permitted ‘choice’ of the ‘forum’ and every attempt at ‘forum shopping’ must be crushed with a heavy hand”

38. In the circumstances of this case, I uphold the first preliminary objection.

HAVE THE NECESSARY PARTIES BEEN NAMED?

39. The 1st Respondent echoed the preliminary objections of the 2nd Respondent and submitted that in failing to name RANKEN as a party to the instant matter, necessary parties have failed to be added; **Dominic v Minister of Lands and others** (2010) 2 SLR 398 wherein the previous decision in **Rawaya Publishers and others v Wijedasa Rajapakshe Chairman of Sri Lanka Press Counsel and Others** (2001) 3 SLR 213 was cited and upheld that “no order can be effectively made” in the context of an application where necessary parties have not been named. The 1st Respondent also relied on the authorities of **Hatton National Bank Plc v Commissioner General of Labour and others** CA/WRT/457/2011 decided on 31.01.2020.

40. The Petitioner has submitted that RANKEN is the agent of the Petitioner and the 1st Respondent was aware of the principal-agent relationship of the Petitioner and RANKEN. It is not disputed that RANKEN who had been made the 3rd Defendant in the Commercial High Court and the 3rd Defendant-Respondent in the Supreme Court, has to date not entered appearance and the said case is proceeding *ex parte* against RANKEN. No relief has been sought against RANKEN in this application. However, the Petitioner has alleged fraud, lack of authority and collusion against RANKEN in the Petition. Those allegations combined with the unavoidable fact that it was Ranken that entered into the contract that the Petitioner is seeking to enforce, and the Ranken has done so in its own name make it

impossible for the Petitioner to proceed with proceedings. If this Court proceeded with this application without Ranken, it would amount to accepting that Ranken was only the agent in the contracts. That would have serious repercussions to Ranken in relation to alleged fraud on public authorities but also in relation to any dispute it may seek to refer to arbitration.

CONTRACTUAL OBLIGATION OR PUBLIC DUTY:

41. The Petitioner submitted that it is by virtue of this said statutory authority, that the 02nd Respondent had the power to enter into the said contract marked "A7" and "AB" and these contracts have been entered into for PUBLIC BENEFIT, wherein any action and/or inaction on the part of the said Contract would be subject to judicial review.
42. In this regard the Petitioner has drawn the attention of Court to **Timberlake International Pvt. Ltd vs. The Conservator General of Forests**: SC/APPEAL/06/2008 decided on 02.03.2010 where Hon. Marsoof J. held at Page 18 as follows,

"As Wade and Forsyth observe in their work Administrative Law- Ninth Edition, page 668 "contractual and commercial obligations are enforceable by ordinary action and not by judicial review.""

43. While this principle is illustrated by many judicial decisions such as **University Council of Vidyodaya University v. Linus Silva** 66 NLR 505, which have had the effect of excluding contractual disputes from the pale of judicial review through prerogative remedies, our Courts have nevertheless provided relief through prerogative remedies in statutory contexts where the contractual or commercial character of a particular transaction is overshadowed by some administrative or regulatory malady that needs to be remedied. At Page 19:

"I have no doubt that the Court of Appeal did not misdirect itself or err in law in seeking to exercise its beneficial writ jurisdiction in the circumstances of this case, and therefore answer question (i) in the negative."

44. The Petitioner cited **W. G. Chamila S. Urban Development Authority and 07 Others:** CA/WRT/215/2022 decided on 26.10.2022 wherein Hon. Sobhitha Rajakaruna J., held that:

In the said Devendra Budalge case this Court held; "The general perception is that the contractual and commercial obligations are enforceable by ordinary actions and not by judicial review. However, with the judicial activism within the realm of judicial review, our Courts as well as English courts have deviated in many occasions from the above general rule. As such many Judges have shown a tendency to favour the inclusion of contractual obligations in judicial review in order to disallow administrative power to be escaped from judicial control."

45. The below mentioned passage in **Kumudini Madugalle vs. National Housing Development Authority**, CA/WRT/540/2019 decided on 16.06.2020 is very much apt here;

"I must make clear this Judgement shall not be taken to mean that violations based on contracts by public bodies are totally outside writ jurisdiction. There is no such blanket prohibition. Each case shall be treated separately. De Smith in his treatise at page 148 states

"The existence of a possibility of a private law claim does not by itself however, make judicial review inappropriate."

"However, with the judicial activism within the realm of judicial review, our Courts as well as English courts have deviated in many occasions from the above general rule. As such many Judges have shown a tendency to favour the inclusion of contractual obligations in judicial review in order to disallow administrative power to be escaped from judicial control."

46. In light of the above authorities, it is deductible that violations based on contracts by public bodies are not totally outside writ jurisdiction but each case should be treated

separately and the existence of a possibility of a private law claim does not by itself, make judicial review inappropriate.

47. The Petitioner is before this Court on procedural impropriety and alleged violation of rule of natural justice, by failing to follow any of the POST-TERMINATION procedures, which prevents the 2nd Respondent to claim on any of the Conditional Guarantees. The "cause of action" before the Commercial High Court warrants the Trial Court to go into factual matters like fraud, and unlawful/wrongful termination, failure to complete the termination process (ie. Pre-termination). The said action as well as the appeal made to the Supreme Court has been dismissed. The Petitioner has preferred to file action first in the Commercial High Court as the most effective remedy but failed.
48. After lapse of over 5 years only, the Petitioner has preferred judicial review. Although delay can be explained, this kind conduct amounts to abuse of process. I have discussed this factor at pages 7 to 10 in this order.
49. The issue of estoppel and abuse of process are intertwined and a similar approach was adopted in **Nigamuni Piyuji Rasanja Mendis v. The University of Kelaniya** CA/WRIT/90/2021, CA Minutes of 02.08.2023,

“In the circumstances, it is apparent that the factual foundation for the reliefs sought in each of the above proceedings are similar and I am satisfied that all three of the above proceedings have been initiated based on the same course of dealings between the same parties. In other words, the Petitioner has sought reliefs from the Supreme Court, Court of Appeal and the USAB on the same cause of action upon which the principles of res judicata can be employed easily. Although the conclusion of the proceedings before USAB is not material to my findings on res judicata, it is paramount to note that the proceedings before the Supreme Court in the said FR Application have been concluded. This Court may not be able to adopt the principles of res judicata in a writ application, in an event where the proceedings before the Supreme Court were not concluded. It needs to be stressed that the Petitioner has failed to give adequate and appropriate reasons for maintaining the FR Application and the Writ Application parallelly. With the modern trends and the

complexity of issues in the present day society while recognizing the right of a litigant to procure similar reliefs through multiple adjudications, I must emphasize that it is a fundamental requirement that the suitor should satisfy this Court with exceptional grounds that the factual foundation in such multiple proceedings do not amount to an abuse of process of court and also the suitor is not estopped by any established principle of law.

However, if a person who seeks redress from Supreme Court alleges that his fundamental rights have been infringed, he cannot smuggle that question into a writ Application parallelly by seeking reliefs on different facts and grounds abusing the process of Court and also without satisfying the Court of Appeal with adequate and sufficient reasons. The term forum shopping, in my view, also contributes to abuse the process of Court. "Forum Shopping has been defined as a litigant's attempt "to have his action tried in a particular court or jurisdiction where he feels he will receive the most favourable judgment or verdict". The American legal system tends to treat forum shopping as unethical and inefficient; parties who forum shop are accused of abusing the adversary system and squandering judicial resources. Forum shopping, however, is more complex than these characterizations suggest". (vide - 'Forum Shopping Reconsidered' Harward Law Review, vol. 103, no. 7, 1990, p. 1677)

Thus, although I agree with the concept that the forum shopping should not be allowed within our court system, a thin margin should be left for a litigant to have multiple proceedings when it does not appear to the litigants that justice has been done. This should be apart from the other grounds discussed above in this regard. On a careful consideration of the whole matter and based on the cause of action and the course of dealings between the same parties in proceedings initiated by the Petitioner in Supreme Court and Court of Appeal, I am compelled to arrive at the conclusion that all the requisites discussed above to reject the instant Application on the principles of res judicata are fulfilled. Moreover, I am of the view that the Petitioner is guilty for abusing the process of court. The main contributory factor for mu said conclusion is the failure of the Petitioner to give adequate and sufficient reasons for

maintaining the instant Application despite the Supreme Court, which has the sole and exclusive jurisdiction on fundamental rights Applications, assaying a similar cause of action and course of dealings among the same parties”.

50. It is equally important that the Petitioner proffers no explanation for waiting until the Commercial Court action as well as the appeal concluded. In the Nigamuni case the Court of Appeal was faced with a similar situation, where the Petitioner first invoked the jurisdiction of another court and then instituted proceedings in this Court. The Court held as follows:

“When analyzing the chronological arrangement of dates chosen by the Petitioner to apply to the Supreme Court, USAB and to Court of Appeal, I need to emphasize that the Petitioner is guilty of laches. The Petitioner has recourse to the Court of Appeal only after the Supreme Court in the said FR Application takes a decision unfavourable to the Petitioner. The Petitioner has waited almost 2 years until some favourable consequential or ancillary decision was taken and therefore, the delayed Application for judicial review cannot be assumed to be reasonable. The special circumstances of this case imply that the Petitioner has failed to satisfy the initial threshold requirement in order to warrant this Court to issue formal notice of this Application to the Respondents. Therefore, upholding the preliminary objections dealt with in this order, I proceed to refuse this Application.”.

51. In the instant case, the Petitioner has waited five years to institute this Writ Application. In fact, regarding the writ of *certiorari*, a basic characteristic of the writ is that there should not be an unjustifiable delay in applying for the remedy. In my view, this delay of five years is fatal to the Petitioner’s application particularly viewed from the perspective that it has been filed ten days after the Supreme Court dismissed its leave to appeal application.

52. For the foregoing reasons, I am inclined to uphold the preliminary objections.
Accordingly, the Petitioner's application is dismissed without costs.

Judge of the Court of Appeal

Hon. Rohantha Abeyesuriya PC, J.(P/CA)

I agree.

President of the Court of Appeal